



Notification Waiver Determination

Respect Group – Proserpine Nursing Home

Acquisition	Respect Group Limited (Respect Group) applied for a notification waiver in respect of its proposed acquisition of 100% of the business, assets, and land of Prosperine Nursing Home Inc (Proserpine Nursing Home), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	28 August 2026

Parties to the Acquisition	The acquirer, Respect Group, is a not-for-profit registered charity and unlisted public company based in Tasmania, which provides residential aged care, retirement living, and support at home services focused on dignity and wellbeing for older adults. Respect Group owns and operates 41 residential aged care homes across Tasmania, New South Wales, Victoria, Western Australia, Queensland, and South Australia. The target, Prosperine Nursing Home, is a not-for-profit incorporated association and registered charity operating a single-site residential aged care home with 104 beds at 42 Anzac Road, Prosperine, in the Whitsunday Region of Queensland.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application, and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given: a. there is limited geographic overlap between Respect Group and Proserpine Nursing Home, with Respect Group's closest existing residential aged care facility being located approximately 120 kilometres away by road b. there are alternative providers of residential aged care services in the region surrounding Proserpine Nursing Home. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met.

	Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**